

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Delhi **PS:** SC-II Delhi
Year: 2024
FIR No: RC0502024S0014 **Date:** 22/12/2024

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	366	
IPC	363	

3. **Suspected offences:** Kidnapping

(a) **Occurrence of offence:**

Day:

Time Period:

From Date:

01/08/2017 11:00:00
AM

To Date: 09/08/2017 06:53:00 PM

(b) **Information Received at PS:**

Date:

20/12/2024

(c) **General Diary Reference:**

Entry No.:

001

Date:

22/12/2024

Time: 19:53:45

4. **Type of Information:** Others

5. **Place of Occurrence:**

Sirsi Village, PS: Aron, District Guna, Madhya Pradesh

(a) **Direction & distance from PS:**

Beat No.:

(b) **Address:**

Plot No.:

Area:

City:

Pin:

State:

District:

(c) **In case, outside the limit of this Police Station, then**

Name of PS:

District:

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. Sh. Gajendra Chandel

(b) **Father's/Husband's Name:** Maujilal Chandel

(c) **Date/Year of Birth:** 1967

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:** Village: Sirsi, PS: Aron, Guna, Madhya Pradesh

(g) **Address:**

Plot No	Area	City	State	District	Pin
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7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1

Name: Unknown

Address:

8. **Reasons for delay in reporting by the complainant/informant:**

No delay

9. **Particulars of properties stolen:**



Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:

11. Inquest Report/U.D. Case No., if any:

12. First information contents:

In pursuance of the order dated 17.12.2024 passed by the Hon'ble High Court of Madhya Pradesh at Gwalior in W.P. No. 21850/2017, the present case has been registered in CBI, Special Crime-II, New Delhi by taking over the investigation of FIR No. 0444/2017 dated 09.08.2017 of PS Aron, District: Guna, Madhya Pradesh U/s 363 & 366 of IPC registered on the allegation that someone has kidnapped minor daughter of Sh. Gajendra Singh, Village: Sirsi, PS: Aron, Guna, Madhya Pradesh on 01.08.2017. The certified copy of FIR No.0444/2017 dated 09.08.2017 of PS Aron, Guna, Madhya Pradesh and order dated 17.12.2024 passed by Hon'ble High Court of Madhya Pradesh at Gwalior in W.P. No. 21850/2017 are part & parcel of this FIR.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO: Prashant Srivastava
Rank: ADDL SUPERINTENDENT OF POLICE (SC-II Delhi)
No: 76359

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS: District:

on point of jurisdiction.

Attached documents:

Document name

Judgment order dated 17 Dec 2024 of High Court of Madhya Pradesh

FIR No 444 of 2017 of PS Oran

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Signature of Officer
in-charge Police Station

Name: Bharat Bhushan Bhatt

Rank: SUPDT. OF POLICE (SC-II Delhi)

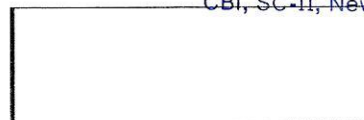
भारत भूषण भट्ट/BHARAT BHUSHAN BHATT

पुलिस अधीक्षक/Suptd. of Police

के० अ० ब्यूरो, एस० सी०-II, नई दिल्ली

CBI, SC-II, New Delhi

15. Date and time of dispatch to the Court:





IN THE HIGH COURT OF MADHYA PRADESH AT GWALIOR
BEFORE

HON'BLE SHRI JUSTICE G.S. AHLUWALIA
&
HON'BLE SHRI JUSTICE ROOPESH CHANDRA VARSHNEY

ON THE 17th DECEMBER 2024

W.P. No. 21850 OF 2017

GAJENDRA SINGH CHANDEL

VS.

THE STATE OF M.P. AND OTHERS

Appearance :

Shri Anil Kumar Shrivastava, Counsel for Appellant
Shri Vivek Khedkar Counsel for Respondents with Ms. Deepa
Dodwe, S.D.O.(P)

Heard on : 9-12-2024

Delivered on : 17-12-2024

JUDGMENT

Per G.S. Ahluwalia J.

This petition under, Article 226 of Constitution of India, has been
filed seeking the following relief(s):

“याचिकाकर्ता वर्तमान याचिका के माध्यम से निम्न राहतों
की याचना करता है कि—

(क) यह कि, प्रत्यर्थी क. 1 लगायत 3 के विरुद्ध उचित
आदेश/निर्देश जारी किये जावें कि याचिकाकर्ता द्वारा की गई
लिखित शिकायती आवेदन अनेकजार पी/ लगायत पी/ पर शीघ्र
कार्रवाही कर प्रत्यर्थी क. 4 व 5 के अद्वैत निरोध से याचिकाकर्ता
की अवयस्क पुत्री कु. गीता को तत्काल मुक्त करावे ।

(ख) यह कि, अन्य न्यायोचित सहायता जो माननीय न्यायालय
उचित समझे दिलायी जावे ।”

Handwritten signature



2. This writ petition shows a very sorry state of affairs regarding incompetency of police of State of Madhya Pradesh. In spite of repeated adverse remarks by different benches of this Court, the police personals did not improve their manner of investigating the matter. Shocking aspect is that although Ms. Deepa Dodwe S.D.O.(P) has appeared personally before the Court on multiple occasions, but there was no improvement in her manner of investigation and from the case diary, it appears that except doing paper formality and wasting valuable time, she has not shown any interest in the matter and in fact every attempt has been made to protect the police personals whose names have appeared in the Narco Test of witnesses.

3. The fact of this case is that one girl namely "X" (her name is being masked deliberately) went missing on 1-8-2017. This petition in the nature of habeas corpus has been filed on 11-12-2017 and one Jitendra Prajapati was also tried for offence under Section 363 of IPC and he too has been acquitted, but still it is not known as to whether the missing girl is still alive or not?

4. The previous order-sheets of this case indicates, that on multiple occasions serious views were taken on the incompetency of the State Police, specifically the police of Guna District, but even such orders have not brought competency in the working of the police officers. Even it appears that Superintendent of Police, Guna who takes Crime Control Meeting every month, did not show any interest in the matter and no attempt was made by him to issue directions to his sub-ordinates under Section 36 of Cr.P.C.



5. One of the order passed by coordinate bench of this case on 5-7-2022 reads as under :

"This writ petition under Article 226 of the Constitution of India, at the instance of an unfortunate father was filed in the year 2017 with the pious hope that this Court in exercise of its extraordinary constitutional jurisdiction shall come to his rescue for tracing her missing minor girl aged about 11 years.

Despite repeated orders by this Court, callousness on the part of the Police force is well evident. Besides, the complaint of the counsel for the petitioner is that at some point of time, though there was a break through situation during investigation with the incriminating material found, still the investigation was put to a standstill. It further appears that despite 03 SITs constituted to search for the missing corpus, the corpus so far has not been found out. It shows incompetence of such Police officials, who were members of the SITs. That apart, there is a disclosure of the fact by a person namely Sonu Kalawat S/o Suresh Kalawat of having raped, killed and buried the body of the missing corpus, but so far no action has been taken against him. The photographs of the minor girl on record reflect how ruthlessly she was beaten black and blue, smashed her face and the whole body looked totally mutilated.

The height of absurdity and stupidity on the part of the Police officials is writ large, as despite the said knowledge of demise of the corpus, subsequent reports are being submitted that the missing corpus is being searched. Last affidavit filed by the Director General of Police on 05/03/2020 in compliance of the Court's order though runs into 06 pages but prima facie appears to be a lip service, as no substantial steps have been taken for action against such assailant, who was alleged to have stated about the rape and murder of the deceased missing corpus. It is further surprising to note that so far, no FIR has been lodged to start the investigation on aforesaid disclosure of the fact of the death of the deceased corpus. Also, there is nothing on record to pursue the application pending before the Collector for conducting the NARCO test of Sonu Kalawat, for which application allegedly was filed on 14/02/2020 and from reading of paragraph (j) of the affidavit of the DG Police, in sensitivity and indifference of said official in such heinous crime renders



his conduct vulnerable. We are constrained to observe so, despite repeated orders by this Court, DG Police Madhya Pradesh since the year 2020 has maintained blissful silence for the reasons best known to him. We may hasten to add that complaints of inaction or polluted action by the police force are invariably brought to the notice of this Court in different jurisdiction. We take strong exception to the functioning of the Police force in the State particularly, in the Guna district relevant to the facts of this case. We are also constrained to observe that facts on record suggest that there is no one to Police the Police Man in this State. Safety and protection of public at large against invasion on their personal liberty and property appears to be seriously jeopardized.

Before proceeding further, we find it expedient to call for the Inspector General of Police on 08/07/2022 and thereafter, if circumstances so warrant, possibility of personal appearance of the DG Police is not ruled out."

6. The aforesaid order passed by co-ordinate bench of this Court is an example of unprofessional and inefficient working of police. Be that as it may. This Court is not deliberately reproducing other orders passed by different benches of this Court from time to time, but one thing is clear that in spite of the fact that one minor girl went missing from 1-8-2017, in spite of strict orders passed by different benches of this Court, the police is sitting tight over the matter. The reason is obvious.

7. It appears that earlier, the girl eloped with Jitendra but came back on the next day. Thereafter, again she went missing on 1-8-2017 and thereafter she could not be traced out.

8. Narco test of multiple persons were conducted. Savita in her Narco test, while disclosing about the incident when the girl "X" had eloped with Jitendra has stated as under :

वैज्ञानिक	कैसे लगे गये थे
सविता	गाड़ी से
वैज्ञानिक	कौन सी गाड़ी से बाईक से फोर व्हीलर से
सविता	फोर व्हीलर से

Ph



IP No. 2/NSG/2017

वैज्ञानिक	किराकी गाड़ी थी
सविता	पुलिस वाले की
वैज्ञानिक	पुलिस वाला किसको जानता है
सविता	केस लगाया तब से सब जानते हैं मुझे
वैज्ञानिक	कौन सा पुलिस वाला जानता है
सविता	सब जानते हैं
वैज्ञानिक	पुलिस वाले का नाम बताओ
सविता	मे नाम नहीं जानती

9. No attempt was made to find out the correctness of this disclosure made by Savita, and no attempt was made to find out that who was that police personal whose four wheeler was used and why?

10. Similarly, when the Narco test of Gajendra Singh Baghel was conducted, the name of Abhay Pratap Singh, the then Town Inspector, Police Station Aron, Distt. Guna has also come to light as a suspect. It was specifically admitted by S.D.O. (P), that no investigation has been done on the basis of information received from the Narco Test of Gajendra Singh Baghel. Further from the case diary proceedings, it appears that on almost all the occasions, the police party went to the village of the missing girl and tried to find out the whereabouts of the missing girl. How such a conduct of investigating agency can be said to an intelligent move? The girl is missing for the last 7 years, and still the police personals are visiting the village of the girl to find out her whereabouts.

11. There is another important aspect which cannot be lost sight of.

12. In missing person cases, most of the time, the police party conducts only paper formality. It is the experience of the Court in multiple cases that in such cases, the police claims to have affixed the photographs of missing persons in different parts of the Country. However, the photographs are affixed without any clue of the missing person. Every time, it is disclosed that since, one of the police party had gone to a



particular place to carry out investigation in some other case, then without any lead or clue, they also affixed the photographs of the missing persons in that city and thereafter, they claim by filing their reply before the Court, that effective investigation is being done. **How, such paper formality can be said to be an effective investigation?**

13. Even in the present case, whenever, the police party came to Gwalior for preparing and filing their response in the present case, a diary proceeding has been written that while on their way to Gwalior, they enquired about the missing girl from the villages situated on the way to Gwalior. Be that as it may be. It appears that Police Headquarters has also issued a S.O.P. with regard to manner in which investigation in missing person is to be conducted, but it appears that the police personals posted in State of M.P., have given a complete go by to such S.O.P. and have invented a new method of affixing the photographs of missing persons in different cities merely because the police party had gone to such city in connection with investigation of some other case.

14. It is for the Director General of Police to look into the efficiency and competency of his police personals. If the head of State Police is happy with the mal-functioning and incompetence of his sub-ordinates, then it is for the State Govt. to review the things. But one thing is clear that in spite of the fact that role of police personals has also figured in the Narco test of different people, but no steps were taken to find out the truth in that information. From the diary proceedings it is clear that only the faces of the investigating officer have changed from time to time, but the working of the police remained the same.

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15. Further more, another co-ordinate bench of this Court had passed the following order on 2-7-2024 which reads as under :

Present petition is filed in the nature of habeas corpus on account of missing of daughter of petitioner on 1.8.2017. Seven years will be completed on 2nd August, 2024; therefore, it can be presumed to be a civil death of the girl. So far as the allegation against respondents No.3 and 4 are concerned, respondent No.4 was subjected to criminal trial vide S.T. No.186/2018 under Sections 363 and 366 of the I.P.C. and vide judgement dated 14.2.2015 he has been acquitted. Now the State Government as well as petitioner both have preferred Criminal Appeal Nos.4365/2019 and 8395/2022.

Counsel for the petitioner prays for short time to address this Court on the issue of maintainability of this present petition at this stage i.e. after acquittal of respondent No.3 and expiry of period of 7 years from the date of missing of the girl.

16. It is true that in absence of any information about the missing girl for the last 7 years, her civil death can be presumed, but this is a case where this petition is pending from the year 2017 and no effective steps have been taken by the police to trace out the missing girl. Further more, it is not the stand of the police that the girl may not be alive. The police is completely clueless.

17. This Court has already considered the different police case diary proceedings and orders passed by different benches of this Court from time to time. But the conduct of investigating officers specifically Ms. Deepa Dodwe and other heads of SITs clearly show the lack of professionalism and lack of investigation skills of the police personals.

18. The next question for consideration is that whether the police should be allowed to continue with paper formalities with no investigation



skills or the matter should be handed over to CBI for further investigation as well as to look into the conduct of various heads of SITs including that of Ms. Deepa Dodwe, S.D.O. (P).

19. The Supreme Court in the case of **Nasima Vs. State of U.P.** by order dated **21-4-2022** passed by **S.L.P. (Cri) No. 551 of 2022** has held as under :

The term 'investigation' as referred to under Section 2(h) of the Code includes collection of evidence conducted by the police officer or by any person who is authorized by the Magistrate on his behalf and that includes search for material evidence and facts to find out whether or not an offence has been committed by the accused or not?

The fair investigation is the backbone of criminal justice system and the object of the investigation is to search for the truth so that it would help in meeting the ends of justice by way of fair trial in Court. At the same time, the need to ensure fair investigation of crime is undoubtedly imperative because it protects at one level the rights of the victim and the fundamental rights of every citizen in ensuring that crime is investigated and dealt with in accordance with law.

20. The Supreme Court in the case of **State of Punjab Vs. CBI** reported in (2011) 9 SCC 182 has held as under :

29. On a reading of the reasons given by the High Court, we find that the High Court was of the view that the investigating officer even of the rank of DSP was not in a position to investigate the case fairly and truthfully because senior functionaries of the State Police and political leaders were to be named and political and administrative compulsions were making it difficult for the investigating team to go any further to bring home the truth. It further observed that not less than eight police officials, political leaders, advocates, municipal councillors besides a number of persons belonging to general public had been named in the status report of the State local police.



30. In the peculiar facts and circumstances of the case, the High Court felt that justice would not be done to the case if the investigation stays in the hands of the local police and for these reasons directed that the investigation of the case be handed over to CBI. The narration of the facts and circumstances in paras 2 to 9 of this judgment also support the conclusion of the High Court that investigation by an independent agency such as CBI was absolutely necessary in the interests of justice.

31. Moreover, even though the High Court in the impugned order dated 11-12-2007 did make a mention that in case challan has been filed, then the petition will stand as having become infructuous in the order dated 12-12-2007, the High Court has stayed further proceedings before the trial court in the case arising out of FIR No. 82 of PS City I, Moga, till further orders. Thus, the High Court was of the view that even though the investigation is complete in one case and charge-sheet has been filed by the police, it was necessary in the ends of justice that CBI should carry out an investigation into the case.

32. In the recent case of *State of W.B. v. Committee for Protection of Democratic Rights* a Constitution Bench of this Court, while holding that no Act of Parliament can exclude or curtail the powers of the High Court under Article 226 of the Constitution, has cautioned that the extraordinary powers of the High Court under Article 226 of the Constitution must be exercised sparingly, cautiously and in exceptional situations where it becomes necessary to provide credibility and confidence in investigation or where the incident may have national or international ramifications or where such an order may be necessary for doing complete justice and enforcing fundamental rights. This caution equally applies to the cases where the High Court exercises inherent powers under Section 482 CrPC to direct investigation by CBI for securing the ends of justice.

33. In the facts and circumstances of this case, however, the High Court has held that the State local police was unable to carry out investigation into the cases and for securing the ends of justice the investigation has to be handed over to CBI. In other words, this was one of those extraordinary cases where the direction of the High Court for investigation by CBI was justified.



21. The Supreme Court in the case of **Vinay Tyagi v. Irshad Ali**, reported in (2013) 5 SCC 762 has held as under :

43. At this stage, we may also state another well-settled canon of the criminal jurisprudence that the superior courts have the jurisdiction under Section 482 of the Code or even Article 226 of the Constitution of India to direct "further investigation", "fresh" or "de novo" and even "reinvestigation". "Fresh", "de novo" and "reinvestigation" are synonymous expressions and their result in law would be the same. The superior courts are even vested with the power of transferring investigation from one agency to another, provided the ends of justice so demand such action. Of course, it is also a settled principle that this power has to be exercised by the superior courts very sparingly and with great circumspection.

44. We have deliberated at some length on the issue that the powers of the High Court under Section 482 of the Code do not control or limit, directly or impliedly, the width of the power of the Magistrate under Section 228 of the Code. Wherever a charge-sheet has been submitted to the court, even this Court ordinarily would not reopen the investigation, especially by entrusting the same to a specialised agency. It can safely be stated and concluded that in an appropriate case, when the Court feels that the investigation by the police authorities is not in the proper direction and that in order to do complete justice and where the facts of the case demand, it is always open to the Court to hand over the investigation to a specialised agency. These principles have been reiterated with approval in the judgments of this Court in *Disha v. State of Gujarat*, *Vineet Narain v. Union of India*, *Union of India v. Sushil Kumar Modi* and *Rubabbuddin Sheikh v. State of Gujarat*.

45. The power to order/direct "reinvestigation" or "de novo" investigation falls in the domain of higher courts, that too in exceptional cases. If one examines the provisions of the Code, there is no specific provision for cancellation of the reports, except that the investigating agency can file a closure report (where according to the investigating agency, no offence is made out). Even such a report is subject to acceptance by the learned Magistrate who, in his wisdom, may or may not accept

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such a report. For valid reasons, the court may, by declining to accept such a report, direct "further investigation", or even on the basis of the record of the case and the documents annexed thereto, summon the accused.

22. The Supreme Court in the case of **State of W.B. v. Committee for Protection of Democratic Rights**, reported in (2010) 3 SCC 571 has held as under :

Conclusions

68. Thus, having examined the rival contentions in the context of the constitutional scheme, we conclude as follows:

(i) The fundamental rights, enshrined in Part III of the Constitution, are inherent and cannot be extinguished by any constitutional or statutory provision. Any law that abrogates or abridges such rights would be violative of the basic structure doctrine. The actual effect and impact of the law on the rights guaranteed under Part III has to be taken into account in determining whether or not it destroys the basic structure.

(ii) Article 21 of the Constitution in its broad perspective seeks to protect the persons of their lives and personal liberties except according to the procedure established by law. The said article in its broad application not only takes within its fold enforcement of the rights of an accused but also the rights of the victim. The State has a duty to enforce the human rights of a citizen providing for fair and impartial investigation against any person accused of commission of a cognizable offence, which may include its own officers. In certain situations even a witness to the crime may seek for and shall be granted protection by the State.

(iii) In view of the constitutional scheme and the jurisdiction conferred on this Court under Article 32 and on the High Courts under Article 226 of the Constitution the power of judicial review being an integral part of the basic structure of the Constitution, no Act of Parliament can exclude or curtail the powers of the constitutional courts with regard to the enforcement of fundamental rights. As a matter of fact, such a power is essential to give practicable content to the objectives of the Constitution embodied in Part III and other parts of the

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Constitution. Moreover, in a federal constitution, the distribution of legislative powers between Parliament and the State Legislature involves limitation on legislative powers and, therefore, this requires an authority other than Parliament to ascertain whether such limitations are transgressed. Judicial review acts as the final arbiter not only to give effect to the distribution of legislative powers between Parliament and the State Legislatures, it is also necessary to show any transgression by each entity. Therefore, to borrow the words of Lord Steyn, judicial review is justified by combination of "the principles of separation of powers, rule of law, the principle of constitutionality and the reach of judicial review".

(iv) If the federal structure is violated by any legislative action, the Constitution takes care to protect the federal structure by ensuring that the Courts act as guardians and interpreters of the Constitution and provide remedy under Articles 32 and 226, whenever there is an attempted violation. In the circumstances, any direction by the Supreme Court or the High Court in exercise of power under Article 32 or 226 to uphold the Constitution and maintain the rule of law cannot be termed as violating the federal structure.

(v) Restriction on Parliament by the Constitution and restriction on the executive by Parliament under an enactment, do not amount to restriction on the power of the Judiciary under Articles 32 and 226 of the Constitution.

(vi) If in terms of Entry 2 of List II of the Seventh Schedule on the one hand and Entry 2-A and Entry 80 of List I on the other, an investigation by another agency is permissible subject to grant of consent by the State concerned, there is no reason as to why, in an exceptional situation, the Court would be precluded from exercising the same power which the Union could exercise in terms of the provisions of the statute. In our opinion, exercise of such power by the constitutional courts would not violate the doctrine of separation of powers. In fact, if in such a situation the Court fails to grant relief, it would be failing in its constitutional duty.

(vii) When the Special Police Act itself provides that subject to the consent by the State, CBI can take up investigation in relation to the crime which was otherwise within the jurisdiction of the State police, the Court can also exercise its



constitutional power of judicial review and direct CBI to take up the investigation within the jurisdiction of the State. The power of the High Court under Article 226 of the Constitution cannot be taken away, curtailed or diluted by Section 6 of the Special Police Act. Irrespective of there being any statutory provision acting as a restriction on the powers of the Courts, the restriction imposed by Section 6 of the Special Police Act on the powers of the Union, cannot be read as restriction on the powers of the constitutional courts. Therefore, exercise of power of judicial review by the High Court, in our opinion, would not amount to infringement of either the doctrine of separation of power or the federal structure.

69. In the final analysis, our answer to the question referred is that a direction by the High Court, in exercise of its jurisdiction under Article 226 of the Constitution, to CBI to investigate a cognizable offence alleged to have been committed within the territory of a State without the consent of that State will neither impinge upon the federal structure of the Constitution nor violate the doctrine of separation of power and shall be valid in law. Being the protectors of civil liberties of the citizens, this Court and the High Courts have not only the power and jurisdiction but also an obligation to protect the fundamental rights, guaranteed by Part III in general and under Article 21 of the Constitution in particular, zealously and vigilantly.

23. The Supreme Court in the case of **Dharam Pal v. State of Haryana**, reported in (2016) 4 SCC 160 has held as under :

2. Cry for fair trial by the accused as well as by the victim sometimes remains in the singular and individualistic realm, may be due to the perception gatherable from the facts that there is an attempt to contest on the plinth of fairness being provoked by some kind of vengeance or singularity of "affected purpose"; but, irrefutably a pronounced and pregnant one, there are occasions when the individual cry is not guided by any kind of revengeful attitude or anger or venom, but by the distressing disappointment faced by the grieved person in getting his voice heard in proper perspective by the authorities who are in charge of conducting investigation and the frustration of a victim gets more aggravated when he is impecunious, and mentally



Case No. 218502077

shattered owing to the situation he is in and thereby knows not where to go, the anguish takes the character of collective agony. When the investigation, as perceived by him, is nothing but an apology for the same and mirrors before him the world of disillusionment that gives rise to the scuffle between the majesty and sanctity of law on one hand and its abuses on the other, he is constrained to seek intervention of the superior courts putting forth a case that his cry is not motivated but an expression of collective mortification and the intention is that justice should not be attenuated.

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24. Be it noted here that the constitutional courts can direct for further investigation or investigation by some other investigating agency. The purpose is, there has to be a fair investigation and a fair trial. The fair trial may be quite difficult unless there is a fair investigation. We are absolutely conscious that direction for further investigation by another agency has to be very sparingly issued but the facts depicted in this case compel us to exercise the said power. We are disposed to think that purpose of justice commands that the cause of the victim, the husband of the deceased, deserves to be answered so that miscarriage of justice is avoided. Therefore, in this case the stage of the case cannot be the governing factor.

25. We may further elucidate. The power to order fresh, de novo or reinvestigation being vested with the constitutional courts, the commencement of a trial and examination of some witnesses cannot be an absolute impediment for exercising the said constitutional power which is meant to ensure a fair and just investigation. It can never be forgotten that as the great ocean has only one taste, the taste of salt, so does justice have one flavour, the flavour of answering to the distress of the people without any discrimination. We may hasten to add that the democratic set-up has the potentiality of ruination if a citizen feels, the truth uttered by a poor man is seldom listened to. Not for nothing it has been said that sun rises and sun sets, light and darkness, winter and spring come and go, even the course of time is playful but truth remains and sparkles when justice is done. It is the bounden duty of a court of law to uphold the truth and truth means absence of deceit, absence of fraud and in a criminal investigation a real and fair

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investigation, not an investigation that reveals itself as a sham one. It is not acceptable. It has to be kept uppermost in mind that impartial and truthful investigation is imperative. If there is indentation or concavity in the investigation, can the "faith" in investigation be regarded as the gospel truth? Will it have the sanctity or the purity of a genuine investigation? If a grave suspicion arises with regard to the investigation, should a constitutional court close its hands and accept the proposition that as the trial has commenced, the matter is beyond it? That is the "tour de force" of the prosecution and if we allow ourselves to say so it has become "idée fixe" but in our view the imperium of the constitutional courts cannot be stifled or smothered by bon mot or polemic. Of course, the suspicion must have some sort of base and foundation and not a figment of one's wild imagination. One may think an impartial investigation would be a nostrum but not doing so would be like playing possum. As has been stated earlier, facts are self-evident and the grieved protagonist, a person belonging to the lower strata. He should not harbour the feeling that he is an "orphan under law".

24. This Court has already considered the unprofessional, unethical and inefficient attitude of the police in investigating the matter in hand. More than 7 long years have passed and in spite of multiple strict orders passed by different benches of this Court, the police has not improved its style of inefficient working. If the minor girls are not safe in the State of M.P. and if the police is unable to trace out their whereabouts, then this Court is left with no other option to transfer the investigation to CBI.

25. Accordingly, the investigation is handed over to CBI. The Superintendent of Police, Guna is directed to handover the entire police case diary containing all the documents and various reports in a sealed cover to Director, CBI within a period of 15 days from today. Director, CBI is directed to depute an investigating officer to collect the case diary from the Superintendent of Police Guna within a period of 15 days from



CIP No. 21859/2017

today. The CBI apart from investigating the matter about missing person of "X", shall also investigate into the role and involvement of those police personals whose names have come forward in the Narco Test of different persons specially Savita and Gajendra Singh Chandel. The CBI shall also investigate into the conduct and manner of investigation done by various investigating officers/head of S.I.T.s and shall give a specific finding as to whether they are competent enough to handle the investigations or not?

26. Under hope and belief, that CBI would be able to come to final conclusion very soon, the Petition is finally **disposed of**.

27. The CBI is directed to submit its periodical progress report (after every three months) before the Principal Registrar of this Court in sealed cover. Liberty is also granted to the petitioner, that if CBI fails to come to a final conclusion with reasonable period, then the petitioner shall be free to file an application for restoration of this Petition.

28. Let a copy of this Order be handed over to Shri Praveen Newaskar, Dy. Solicitor General as well as a copy be also sent to Director, CBI for necessary information and compliance. Shri Newaskar is also directed to immediately forward the copy of this order to Director, CBI for necessary information and compliance.

29. Let a copy of this order be also send to Director General of Police, State of Madhya Pradesh for necessary information with regard to inefficient working of police personals, as well as with regard to their mability to search out the missing girl.

(G.S. Ahluwalia)
Judge

(Roopesh Chandra Varshney)
Judge

FIRST INFORMATION REPORT

(Under Section 154 Cr.P.C.)

प्रथम सूचना रिपोर्ट

(धारा 154 दंड प्रक्रिया संहिता के तहत)

1. District (जिला): गुना

FIR No. (प.सू.रि. सं.): 0444

P.S. (थाना): आरोन

Year (वर्ष): 2017

Original Date and Time (वास्तविक दिनांक और समय): 09/08/2017 19:10 बजे

System Date and Time (सिस्टम दिनांक और समय): 09/08/2017 19:10 बजे

2. S.No. Acts (अधिनियम)
(क्र.सं.)

Sections (धारा(एँ))

1 भा द स 1860

363

2 भा द स 1850

366

3. (a) Occurrence of offence (अपराध की घटना):

1. Day (दिन):

Date From (दिनांक से):

Date To (दिनांक तक):

दरमियानी दिन

01/08/2017

09/08/2017

Time Period (समय अवधि):

Time From (समय से):

Time To (समय तक):

11:00 बजे

18:53 बजे

(b) Information received at P.S. (थाना जहाँ सूचना प्राप्त हुई):

Date (दिनांक):

Time (समय):

09/08/2017

19:00 बजे

(c) General Diary Reference (रोजनामचा संदर्भ):

Entry No. (प्रविष्टि सं.):

Time (समय):

028

19:10 बजे

4. Type of Information (सूचना का प्रकार): Oral

5. Place of Occurrence (घटनास्थल):

1. (a) Direction and distance from P.S. (थाना से दूरी और दिशा): पूर्व, 3 किमी

Beat No. (बीट सं.):

(b) Address (पता): ग्राम सिरसी

(c) In case, outside the limit of this Police Station, then (यदि थाना सीमा के बाहर है तो)

Name of P.S. (थाना का नाम):

District(State) (जिला (राज्य)):

T/C

22/12/24

थाना प्रभारी

थाना आरोन, 'गुना' (म.प्र.)

6. Complainant / Informant (शिकायतकर्ता/सूचनाकर्ता):

(a) Name (नाम): मन्देश चन्देल

(b) Father's Name (पिता का नाम): गोपीलाल चन्देल

(c) Date/Year of Birth (जन्म तिथि / वर्ष): 1967

(e) UID No. (यूआईडी सं.):

(f) Passport No. (पासपोर्ट सं.):

Place of Issue (जारी करने का स्थान):

(g) Occupation (व्यवसाय):

(h) Address (पता):

S.No. (क्र.सं.)	Address Type (पता का प्रकार)	Address (पता)
1	वर्तमान पता	ग्राम सिरसी, आरोन, गुना, मध्य प्रदेश, भारत
2	स्थायी पता	ग्राम सिरसी, आरोन, गुना, मध्य प्रदेश, भारत

(i) Phone number (दूरभाष सं.):

Mobile (मोबाइल सं.): 91-887167200

7. Details of known/suspected/unknown accused with full particulars (जात / संदिग्ध / अज्ञात अभियुक्त का पूरा विवरण सहित वर्णन):

S.No. (क्र.सं.)	Name (नाम)	Alias (उपनाम)	Relative's Name (रिश्तेदार का नाम)	Present Address (वर्तमान पता)
1	अज्ञात			

8. Reasons for delay in reporting by the complainant/informant (शिकायतकर्ता / सूचनाकर्ता द्वारा रिपोर्ट देरी से दर्ज कराने के कारण):

9. Particulars of properties of interest (संबन्धित सम्पत्ति का विवरण):

S.No. (क्र.सं.)	Property Category (संपत्ति श्रेणी)	Property Type (सम्पत्ति का प्रकार)	Description (विवरण)	Value (In Rs/-)
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10. Total value of property stolen (In Rs/-) (चोरी हुई सम्पत्ति का कुल मूल्य (रु में)):

11. Inquest Report / U.D. case No., If any (मृत्यु समीक्षा रिपोर्ट / यू.डी. प्रकरण सं., यदि कोई हो):

S.No. (क्र.सं.) UIDB Number (यू.डी. प्रकरण सं.):

12. First Information contents (प्रथम सूचना तथ्य):

महोदय, मन्देश सिंह पुत्र गोपीलाल चन्देल उम्र 50 साल निवासी आरोन ने थाने पर रिपोर्ट किया कि दिनांक 1.8.17 को मुझ 11 घंटे करीबन मेरी लड़की गोताबाई चन्देल की दुकान पर सिरसी राशन लेने गयी थी जो वापस नहीं आयी जिसकी मैं आज दिनांक 9.8.17 तक तलाश करता रहा जिसकी मेने आसपास तलाश की नहीं मिली जिसका हुलिया रा राखला, कट ठिगना, पेन्ट शर्ट पहने है मुझे शक है कि जितेन्द्र प्रजापति

T/C
थाना प्रभारी
थाना आरोन, 'गुना' (म.प्र.)

बिजारी आरोन का मेरी लड़की गीताबाई को सहला पुरसनाकर ले गया है नहीं मिलने पर रिपोर्ट को आया है
रिपोर्ट करता हूँ कार्यवाही की जाये।

13 Action taken: Since the above information reveals commission of offence(s) as mentioned at Item No. 2.

(की गयी कार्यवाही : चूंकि उपरोक्त जानकारी से पता चलता है कि अपराध करने का तरीका मद सं. 2 में उल्लेख धारा के तहत है।) or (या)

(1) Registered the case and took up the investigation:

(2) Directed (Name of I.O.) (जांच अधिकारी का नाम): SULTAN SINGH RAWAT

Rank (पद): SI (Sub-Inspector)

No. (सं.): 111 to take up the investigation
(को जांच अपने पास में लेने के लिए निर्देश दिया गया) or (या)

(3) Refused investigation due to (जांच के लिए):

or (के कारण इकार किया था)

(4) Transferred to P.S. (थाना):

District (ज़िला):

on point of jurisdiction (को क्षेत्राधिकार के कारण हस्तांतरित) .

F.I.R. read over to the complainant / informant, admitted to be correctly recorded and a copy given to the complainant / informant free of cost.
(शिकायतकर्ता / सूचनाकर्ता को प्राथमिकी पढ़ कर सुनाई गयी, सही दर्ज हुई माना और एक कॉपी निशुल्क शिकायतकर्ता को दी गयी।)

R.O.A.C. (आर. ओ. ए. सी.)

14 Signature/Thumb impression of the complainant / informant.
(शिकायतकर्ता / सूचनाकर्ता के हस्ताक्षर / अंगूठे का निशान):

15 Date and time of dispatch to the court (अदालत में प्रेषण की तिनांक और समय):

Signature of Officer in Charge,
Police Station (थाना प्रभारी के हस्ताक्षर)

Name (नाम): HAJARI LAL

Rank (पद): HC (Head Constable)

No. (सं.): 1

राजेन्द्र सिंह

T/C. 22/12/24

थाना प्रभारी

थाना आरोन, 'बुजा' (म.प्र.)

14

Endst. No. 297 to 302/RC0502024S0014/CBI/SC-II/New Delhi, Dated: 22.12.2024

Copy to:-

1. The Registrar, High Court of Madhya Pradesh at Gwalior.
2. The Spl. Judicial Magistrate, CBI cases, Indore, MP.
3. The Head of Zone, CBI, SCZ, CGO Complex, New Delhi.
4. Sh. Prashant Srivastava, Addl. Supdt. of Police, CBI, SC-II, New Delhi
(Investigating Officer).
5. Sh. Gajendra Chandel S/o Maujilal Chandel, Village: Sirsi, PS. Aron, Guna,
Madhya Pradesh.
- ✓ 6. Guard File.


(Bharat Bhushan Bhatt)
22/12/24
Supdt. of Police
भारत भूषण भट्ट / BHARAT BHUSHAN BHATT
पुलिस अधीक्षक / Supdt. of Police
के.अ. ब्यूरो, एस.सी.-II, नई दिल्ली
CBI, SC-II, New Delhi